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Expressen Lifestyle AB
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Supervision under the Data Protection Regulation
– Expressen Lifestyle AB

Decision of the Swedish Authority for Privacy Protection

The Swedish Authority for Privacy Protection (IMY) finds that Expressen Lifestyle AB (556025-4525) has processed personal data in violation of Article 13.1 c of the Data Protection Regulation by stating an incorrect legal basis for the processing of the registered individuals' personal data from May 2018 until June 4, 2019.

The Swedish Authority for Privacy Protection issues a reprimand to Expressen Lifestyle AB under Article 58.2 b of the Data Protection Regulation for the violation of Article 13.1 c of the Data Protection Regulation.

Account of the supervisory case

The Swedish Authority for Privacy Protection (IMY) initiated a supervision against Bonnier Magazine and Brands AB on June 4, 2019. The supervision was not prompted by any complaint but aimed to examine whether the consents obtained to fulfill the obligation to have a legal basis under Article 6.1 of the Data Protection Regulation met the requirements of the Data Protection Regulation regarding voluntariness, information, and clarity, as well as whether the legal basis was clearly stated. At the beginning of the supervision, Bonnier Magazine and Brands AB had a checkbox on its website along with the text: "I accept the subscription terms. Thus, I consent to the processing of personal data within the Bonnier Group."

In its statement to IMY, Bonnier Magazine and Brands has stated that the information in the registration flow in the company's webshop, Magasinshoppen, was inadvertently not updated in the same way as on other web pages. With the entry into force of the Data Protection Regulation in 2018, Bonnier Magazine and Brands AB undertook extensive work, which included reevaluating its legal basis for processing personal data. Instead of consent, Bonnier Magazine and Brands AB primarily bases its processing of customers' personal data on the legal bases in Article 6.1 b of the Data Protection Regulation, contract, or in Article 6.1 f of the Data Protection Regulation, legitimate interest. In the normal registration flow used on Bonnier Magazine and Brands AB's web pages, the customer is asked to accept the subscription terms and confirm that they have taken note of Bonnier Magazine and Brands AB's privacy policy. Bonnier Magazine and Brands AB has stated that it immediately took measures to update Magasinshoppen with correct information in the registration flow as soon as IMY initiated the supervision.

Case number:
DI-2019-6523

Date:
2023-06-26

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Bonnier Magazines and Brands AB was dissolved through a merger on June 1, 2022, and merged into Expressen Lifestyle AB (556025-4525).

Justification of the Decision

According to Chapter 23, Section 1 of the Swedish Companies Act (2005:551), the effects of a merger imply that all assets and liabilities are assumed by another company at the time of the merger. The acquiring company is therefore responsible for the obligations that existed in the company that was taken over. In light of this, IMY assesses that the acquiring company after the merger date is a party in IMY's supervisory matter, and this supervision is therefore directed at Expressen Lifestyle AB.

When a data controller collects personal data from a data subject, information regarding the legal basis for the processing must be provided, according to Article 13.1 c of the General Data Protection Regulation (GDPR). The data controller must, according to Article 12.1 of the GDPR, take measures to provide this information to the data subject in a concise, clear, and understandable form, using clear and plain language. IMY believes that the text next to the checkbox on the company's website "I agree to the subscription terms. Thus, I consent to the processing of personal data within the Bonnier Group" gives the data subject the impression that the company's legal basis for processing personal data is consent according to Article 6.1 a of the GDPR. The information text found under the link with the text about the subscription terms further reinforces this through the wording "By ordering, you consent to your personal data including email address, mobile phone number for calls and SMS messages, and any other digital addresses being stored and used within Bonnier for digital services, marketing, as well as for statistical and analytical purposes." Furthermore, information about the conditions for consent, including the right to withdraw consent, is provided at the same location.

The company has stated that it does not base its processing of customers' personal data on consent but primarily on the legal grounds of contract or legitimate interest according to Article 6.1 b and f of the GDPR.

In light of this, IMY finds that the company has processed personal data in violation of Article 13.1 c of the GDPR by stating an incorrect legal basis for the processing of data subjects' personal data.

Choice of Intervention

Article 58.2 and Article 83.2 of the GDPR indicate that IMY has the authority to impose administrative fines in accordance with Article 83. Depending on the circumstances of the individual case, administrative fines may be imposed in addition to or instead of the other measures referred to in Article 58.2, such as orders and prohibitions. Furthermore, Article 83.2 outlines the factors to be considered when deciding whether administrative fines should be imposed and when determining the amount of the fine. If it concerns a minor infringement, IMY may, as stated in Recital 148, instead of imposing a fine, issue a reprimand according to Article 58.2 b. Consideration should be given to aggravating and mitigating circumstances in the case, such as the nature, severity, and duration of the infringement, as well as previous relevant infringements.

IMY notes the following relevant circumstances. Bonnier Magazines and Brands AB took immediate action when IMY initiated its supervision to update the information in the registration flow on its website so that the data subject was thereafter neither met with a request for consent nor information text about consent. Instead, the data subject is asked to accept the subscription terms (i.e., the purchase terms) and confirm that they have taken note of the company's privacy policy. The website has not been the page through which most of the company's customers have subscribed. The use of the webshop has therefore been limited, with only 1,372 customers subscribing through this website during the relevant period. Furthermore, it was a mistake that the website was not updated when the company reviewed its procedures in connection with the enforcement of the data protection regulation. IMY assesses that the current deficiency has not had serious consequences for the data subjects. In light of this, IMY assesses that this constitutes a minor infringement in the sense referred to in Recital 148, which means that Expressen Lifestyle AB should receive a reprimand according to Article 58.2 b of the GDPR for the identified deficiency.

This decision has been made by the unit manager Catharina Fernquist after presentation by the lawyer Ulrika Bergström.

Catharina Fernquist, 2023-06-26 (This is an electronic signature)

How to Appeal

If you wish to appeal the decision, you should write to the Swedish Authority for Privacy Protection. Indicate in the letter which decision you are appealing and the change you are requesting. The appeal must be received by the Swedish Authority for Privacy Protection no later than three weeks from the day you received the decision. If the appeal has been submitted in a timely manner, the Swedish Authority for Privacy Protection will forward it to the Administrative Court in Stockholm for consideration.

You may email the appeal to the Swedish Authority for Privacy Protection if it does not contain any sensitive personal data or information that may be subject to confidentiality. The authority's contact details are provided on the first page of the decision.